



**Bureau of Experts at the Council of Ministers
Official Translation Department**

**Implementing Regulations of the Law of Combating Narcotic Drugs and Psychotropic
Substances**

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NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to these Regulations are provided in the Appendix.

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Implementing Regulations of the Law of Combating Narcotic Drugs and Psychotropic Substances

Article 1

1. The Minister of Health shall designate accredited laboratories for testing narcotic drugs and psychotropic substances and the samples collected from accused persons.
2. Laboratory tests shall be approved by two experts who specialize in the following:
 - a) Tests that identify the nature of seized substances and determine whether or not such substances are narcotic or psychotropic as well as their potential harm.
 - b) Tests of the samples collected from accused persons.
3. The Ministry of Health shall, in coordination with the Ministry of Justice, prepare and approve the forms for laboratory testing.
4. The Ministry of Health shall, in coordination with the Ministry of Interior, determine the procedures for collecting samples and the quantities required for testing.

Article 2

1. Means of transportation shall include the following:
 - a) Vessels.
 - b) Aircraft.
 - c) Trains.
2. Carrying pharmaceuticals containing narcotic drugs or psychotropic substances on board means of transportation shall be subject to the following controls:

First: Non-Saudi means of transportation within the territory of the Kingdom:

- i. The permit shall include the names and quantities of the pharmaceuticals as well as the concentration of narcotic drugs or psychotropic substances therein.
- ii. The person in charge of the means of transportation shall disclose the name of the person entrusted with the inventory of the pharmaceuticals.
- iii. If the competent customs officer, while inspecting or reviewing the inventory of pharmaceuticals containing narcotic drugs or psychotropic substances, detects any violation, he shall record the incident in an official report and the Ministry of Interior shall be notified to take necessary action.
- iv. If the means of transportation needs to be resupplied with pharmaceuticals containing narcotic drugs or psychotropic substances, a request to this effect shall be submitted to the competent department at the point of arrival; such request shall include the grounds therefor as well as the names and required quantities of the pharmaceuticals, provided that such quantities do not exceed the quantities the means of transportation is permitted to carry by the country the flag or nationality of which it carries. In such case, the agency in charge of customs shall be notified.
- v. Medical services departments at military agencies shall have the jurisdiction to implement the abovementioned procedures with regards to foreign military means of transportation.



Second: Saudi means of transportation:

- i. The agency in charge of the means of transportation shall submit to the Saudi Food and Drug Authority its annual requirement of emergency pharmaceuticals containing narcotic drugs or psychotropic substances; the Authority shall approve the agency's annual requirement, or amend or reject it stating the grounds therefor.
- ii. Pharmaceuticals containing narcotic drugs or psychotropic substances must be stored in accordance with Article 28 of the Law of Combating Narcotic Drugs and Psychotropic Substances as well as these Regulations.
- iii. The inventory of pharmaceuticals which contain narcotic drugs or psychotropic substances shall be entrusted to the person in charge of the means of transportation, or his designee, if the crew does not include a pharmacist or physician.
- iv. The following pharmaceuticals containing narcotic drugs or psychotropic substances may be carried on board means of transportation:

Name of Pharmaceutical Drug and Concentration of Narcotic Drug or Psychotropic Substance	
Diazepam	10 mg/2 ml amp
Morphine	10 mg/ml amp
Lorazepam	2 mg/ml amp
Tramadol	100 mg/2 ml amp
Pethidine	50 mg/ml amp
Midazolam	15 mg/3 ml amp

- v. The quantities of the pharmaceuticals listed in the table above shall be determined based on the number of passengers on board the means of transportation, the duration and nature of the trip, and whether or not a physician is on board, as follows:

Number of Passengers	Maximum amp			
	Less than 3 days	3-10 days	10-30 days	More than 30 days
Less than 100 passengers	5	10	15	20
From 100 passengers to less than 500 passengers	10	15	20	25
From 500 passengers to less than 1,500 passengers	20	25	30	35
More than 1,500 passengers (the quantity is doubled if the number of passengers doubles)	30	35	40	45



- vi. The pharmaceuticals must be in the form of single-use injections, and the means of transportation may carry all, or part, of the pharmaceuticals, as needed.
 - vii. The conditions and controls regulating the use of narcotic drugs and psychotropic substances provided for in the Law of Combating Narcotic Drugs and Psychotropic Substances and these Regulations must be observed.
 - viii. If the competent employee, while inspecting or reviewing the inventory of pharmaceuticals containing narcotic drugs or psychotropic substances, detects any violation, he shall record the incident in a report as per the nature of the violation.
 - ix. Medical services departments at military agencies shall have the jurisdiction to implement the abovementioned procedures with regards to Saudi military means of transportation and the like.
 - x. The CEO of the Saudi Food and Drug Authority may amend the list of pharmaceuticals containing narcotic drugs or psychotropic substances permitted on board means of transportation as well as their quantities and pharmaceutical forms.
3. The pharmaceuticals containing narcotic drugs or psychotropic substances may only be used on board the means of transportation.

Article 3

1. The competent authorities entrusted with monitoring perpetrators of the crimes provided for in the Law of Combating Narcotic Drugs and Psychotropic Substances shall be the General Directorate of Narcotics Control as well as any agency with jurisdiction over the place or location of the crime.
2. The competent authorities entrusted with pursuing perpetrators of the crimes provided for in the Law of Combating Narcotic Drugs and Psychotropic Substances shall be all agencies with law-enforcement capacity or the power to conduct criminal detection and recording, investigation, or prosecution, as per their jurisdiction, in accordance with the Law of Combating Narcotic Drugs and Psychotropic Substances, these Regulations, and the Law of Criminal Procedure.

Article 4

The competent authorities which may request the assistance of other countries in detecting the smuggling or illicit trafficking of narcotic drugs and psychotropic substances on board a vessel in the high seas shall be:

1. the General Directorate of Narcotics Control; and
2. the communications department at Interpol.

Article 5

1. The competent authorities entrusted with pursuing and punishing any Saudi citizen who commits, outside the Kingdom, any of the crimes provided for in Article 3 of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be the General Directorate of Narcotics Control, the Bureau of Investigation and Public Prosecution, and the competent courts.
2. Legal action shall be initiated pursuant to an official request from the competent authorities of the country in whose territory the crime is committed or pursuant to a statement issued by an official authority, provided that the request or statement is accompanied by attested copies of the documents based on which the accusation is made, including the facts, description, and corroborating evidence of the crime.



Article 6

1. The competent authorities entrusted with pursuing persons accused of complicity in committing, outside the territory of the Kingdom, any of the crimes provided for in Article 3 of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be:
 - a) the General Directorate of Narcotics Control; and
 - b) the communications department at Interpol.
2. Implementation of the measures referred to in Article 8 of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be subject to international agreements.

Article 7

1. The entity responsible for considering requests for assistance shall be the Committee for Mutual Legal Assistance at the Ministry of Interior; all requests for legal assistance shall be referred to said Committee.
2. Requests for assistance, as well as their form, contents, approval, rejection, postponement, and conditions of use, shall be subject to the United Nations Convention Against Illicit Traffic in Narcotic Drugs and Psychotropic Substances (1988) and its Implementing Regulations.

Article 8

1. The competent authorities entrusted with authorizing narcotic drugs and psychotropic substances or substitutes thereof to enter, exit, or transit the territory of the Kingdom shall be the General Directorate of Narcotics Control and the agency in charge of customs.
2. Controlled delivery shall be subject to the following controls and conditions:
 - a) For shipments bound for the territory of the Kingdom:
 - i. The request must be written in the Arabic language.
 - ii. The request must include any information available on the source and transporter of the shipment, the means of transportation used, the type of narcotic drugs or psychotropic substances, and the persons involved in the commission of the crime who are present inside the territory of the Kingdom.
 - iii. The requesting authority must commit to apprehending the shipper and other accused persons, whether or not the persons involved in the crime who are inside the Kingdom are apprehended, and to notifying the competent agency in the Kingdom of the outcomes of the investigation and trial.
 - iv. The agencies in charge of detection and recording in the Kingdom must commit to observing due diligence while undertaking detection and recording procedures to verify that no cases of incitement, enticement, or deception exist. If any of such cases is detected, such agencies shall promptly cease or terminate such procedures and notify the authorities of the requesting country of the same.
 - v. The presence of the narcotic drugs or psychotropic substances subject of controlled delivery, or part thereof if an agreement is made to substitute such substances.
 - vi. The request must include the agreed upon terms regarding the shipment subject of delivery and the means of transportation, regardless of whether or not the persons involved in the crime are apprehended.



- vii. Customs and the narcotics control department must inspect the shipment subject of controlled delivery at the port through which it passes and prepare a joint report thereon. The shipment shall, after being inventoried, be surrendered together with the means of transportation, if any, to the narcotics control department for completion of necessary procedures.
- b) For shipments transiting through the territory of the Kingdom to the territory of another country:
 - i. The request must be written in the Arabic language.
 - ii. Customs must verify the presence of the narcotic drugs or psychotropic substances subject of delivery, or the substitutes thereof, as provided for in the controlled delivery request.
 - iii. The narcotics control department must, in coordination with the competent agency in the Kingdom, monitor the shipment until it exits the territory of the Kingdom and is delivered to the authorities of the other country.
 - iv. The request must include full information on the shipment as well as the approval of the country of destination. If the shipment is transiting through the territories of multiple countries after exiting the territory of the Kingdom, the competent agency of the requesting country must coordinate with such countries, obtain their approval, and enclose proof thereof.
- c) For shipments detected inside the territory of the Kingdom en route to the territory of another country:
 - i. The request must be written in the Arabic language.
 - ii. The competent authorities in the Kingdom must agree with the authorities of the country of delivery regarding sending the same shipment or substituting it.
 - iii. If an agreement is made to send the shipment of narcotic drugs or psychotropic substances without substitution, samples must be obtained therefrom.
 - iv. The request must include the agreed upon terms regarding the shipment subject of delivery and the means of transportation, regardless of whether or not the persons involved in the crime are apprehended.
- 3. In all cases, if the shipment contains any prohibited substance other than narcotic drugs or psychotropic substances, the narcotics control departments shall coordinate with the relevant competent agencies prior to initiating any of the controlled delivery procedures referred to herein.
- 4. The procedures provided for in the previous paragraphs shall only be implemented upon the approval of the Minister of Interior, or his designee, provided that coordination is made with the agency in charge of customs in matters falling within its jurisdiction.
- 5. The Minister of Interior, or his designee, may, as he deems appropriate, exclude any case from the application of these controls and conditions, provided that the competent authorities verify, through observation and not inspection, the presence of narcotic drugs or psychotropic substances and where they are concealed.



Article 9

1. A private establishment seeking to import or export narcotic drugs and psychotropic substances for legitimate purposes must be licensed by the Ministry of Health or the Saudi Food and Drug Authority, as the case may be.
2. A government or private establishment's annual requirement of narcotic drugs and psychotropic substances must be approved by the Saudi Food and Drug Authority.
3. An import license shall be issued for a maximum period of one year and it shall expire at the end of the year for which the annual requirement is approved.
4. The conditions for renewing an import license shall be as follows:
 - a) The license of the private establishment must be valid.
 - b) The requesting entity's annual requirement of narcotic drugs and psychotropic substances must be approved by the Saudi Food and Drug Authority for the year for which the renewal is sought and it must cover the quantity to be imported.
 - c) In case of a delay in imports, the establishment must submit proof that the delay is due to acceptable reasons.
5. The exporting entity shall provide a valid import permit issued by the importing country. Said permit shall include the following:
 - a) The names and addresses of the importing entity, the beneficiary entity, and the manufacturing and exporting companies.
 - b) The substance's scientific and trade names, pharmaceutical form, concentration, volume, packaging, quantity, and net weight.
6. An export license shall be issued for a period equal to the validity period of the import permit issued by the importing country, provided that such period does not exceed one year.
7. The conditions for renewing an export license shall be as follows:
 - a) The license of the private establishment must be valid.
 - b) The requesting entity's annual requirement of narcotic drugs and psychotropic substances must be approved by the Saudi Food and Drug Authority for the year for which the renewal is sought and it must cover the quantity to be exported.
 - c) The import license issued by the importing country must be valid and consistent with the information of the export license.
8. An import or export license must include the following information:
 - a) The names and addresses of the importing entity, the beneficiary entity, and the manufacturing and exporting companies.
 - b) The substance's scientific and trade names, pharmaceutical form, concentration, volume, packaging, quantity, and net weight.
 - c) The license instructions set by the Saudi Food and Drug Authority.



9. Narcotic drugs and psychotropic substances shall be imported by aircraft. The Saudi Food and Drug Authority may, however, in agreement with the Ministry of Interior, authorize the use of other means of transportation. The importer shall comply with the conditions and specifications for transporting and shipping narcotic drugs and psychotropic substances prescribed by the manufacturing company as well as the conditions provided for in international agreements and laws applicable in the Kingdom.
10. Samples of narcotic drugs and psychotropic substances may not be imported except for registration purposes.

Article 10

The quantity to be imported or exported shall be reviewed in accordance with the following controls:

1. The quantity to be imported must not exceed the quantity stated in the establishment's annual requirement as approved by the Saudi Food and Drug Authority.
2. The information and quantity of the substance to be exported must be consistent with the information of the substance and its quantity, or part thereof, as stated in the import license issued by the importing country.
3. The quantity to be exported must not exceed the annual requirement of the importing country as approved by the International Narcotics Control Board.

Article 11

1. The issuance of a clearance license for narcotic drugs and psychotropic substances arriving at customs shall be contingent upon the availability of an import license issued by the Saudi Food and Drug Authority prior to the date of arrival of such substances to the Kingdom. Pharmaceuticals containing narcotic drugs or psychotropic substances in the possession of individuals arriving to the Kingdom or departing therefrom, for their personal use, shall be exempt from this provision in accordance with the procedures and controls approved by the CEO of the Saudi Food and Drug Authority in coordination with the Minister of Health.
2. Narcotic drugs and psychotropic substances shall be stored by customs in accordance with the conditions provided for in Article 19 of these Regulations.
3. The clearance license must include the license instructions set by the Saudi Food and Drug Authority.



Article 12

1. An entity seeking to import seeds of the plants listed in Table No. 4 attached to the Law of Combating Narcotic Drugs and Psychotropic Substances shall submit a request specifying the type and quantity of seeds and the purpose for importing them.
2. The request shall be submitted to the Ministry of Interior and reviewed by a committee comprising representatives from the Ministry of Interior, the Ministry of Health, the Ministry of Higher Education, the Ministry of Agriculture, and the Saudi Food and Drug Authority.
3. The import license shall be valid for a period of one year from its issuance date.
4. The import license shall include the following information:
 - a) Name, type, and quantity of the seeds.
 - b) Name and address of the beneficiary.
 - c) Names and addresses of the importing and exporting entities.
 - d) Purpose of importing the seeds.
 - e) License validity date.
 - f) License instructions as determined by the Ministry of Interior.
5. Seeds arriving at customs may only be handed over pursuant to a clearance license issued by the Ministry of Interior; said license must be returned to the Ministry after clearance is completed. The issuance of a clearance license shall be contingent upon the availability of an import license issued by the Minister of Interior prior to the date of arrival of the seeds to customs.
6. Seeds may only be imported in tightly-sealed packages accompanied by a statement specifying the name and quantity of the seeds therein. Packages containing seeds may not contain any other substance.
7. The inventory of the seeds shall be entrusted to the person designated by the requesting entity when submitting the request, subject to the provisions of Article 22 of the Law of Combating Narcotic Drugs and Psychotropic Substances.
8. The beneficiary entity shall keep a record to document that the quantity is used for the purpose for which it was requested, and shall provide the Ministry of Interior with a copy thereof.
9. If the quantity is not fully used, the remainder of such quantity shall be delivered to the narcotics control department pursuant to a delivery statement, and shall be subject to the provisions of Article 52 of the Law of Combating Narcotic Drugs and Psychotropic Substances as well as these Regulations.
10. The following conditions must be satisfied for the issuance of a cultivation license:
 - a) The place and duration of cultivation must be specified.
 - b) The place prepared for cultivation must be protected by a security fence and the security guards of the beneficiary entity, and it may only be accessed by authorized personnel.
 - c) The beneficiary must store the products of plants, including seeds and the like, in a manner that ensures that such products remain in the place where they are stored and prevents any unlicensed use thereof. The entity with which the beneficiary is affiliated shall be in charge of monitoring and inspection procedures to verify that this condition is satisfied.
 - d) Remaining crops and products, if any, must be destroyed in accordance with Article 52 of the Law of Combating Narcotic Drugs and Psychotropic Substances as well as these Regulations.



Article 13

The transport and delivery of narcotic drugs and psychotropic substances within the Kingdom shall be subject to the following controls and conditions:

1. Narcotic drugs and psychotropic substances must be transported in tightly-sealed containers which are stamped using a seal with a serial number that is recorded in a statement; the original of the statement shall be attached to the container and the exporting entity and beneficiary entity shall each be provided with a copy thereof.
2. Delivery of narcotic drugs and psychotropic substances from the warehouse to the container, and vice versa, must be made pursuant to a delivery statement signed by the person in charge of the inventory of the warehouse as well as the person accompanying the container.
3. The delivery statement must include the substance's name, volume, packaging, and quantity (in numbers and words) as well as the names and addresses of the delivering and receiving entities, the receipt date, and the seal.
4. The container must, during transport, receipt, and delivery, be protected by security guards that are licensed and approved by the Ministry of Interior.
5. If narcotic drugs and psychotropic substances are transported by a private transport company, said company must be licensed by the Ministry of Interior.
6. When transporting pharmaceuticals containing narcotic drugs or psychotropic substances, the following additional conditions shall apply:
 - a) Storage during transport must be in accordance with the specifications prescribed by the manufacturing company.
 - b) The person accompanying the container must be a pharmacist or pharmacy technician.
 - c) The delivery statement must include the pharmaceutical form, concentration, batch number, and expiration date.
7. Samples transported to laboratories for analysis must be placed in tightly-sealed packages enclosed with a statement indicating the substance's name and quantity (by piece or weight); a letter addressed to the laboratory shall be attached to the package requesting the analysis and specifying the code number.



Article 14

1. Customs shall not allow the transit of narcotic drugs and psychotropic substances through the territory of the Kingdom, unless authorized by the Minister of Interior, or his designee.
2. The transit of narcotic drugs and psychotropic substances through the territory of the Kingdom shall be subject to the following conditions:
 - a) The authorized entity must obtain a license from the exporting and importing countries.
 - b) The means of transportation must be specified as well as its route and point of exit.
 - c) The type, name, quantity, and concentration of the narcotic drug or psychotropic substance must be specified.
 - d) The substances must be under security protection as determined by the Ministry of Interior.
3. Customs shall verify satisfaction of the conditions of the transit of narcotic drugs and psychotropic substances through the territory of the Kingdom, subject to applicable laws, regulations, and instructions.
4. Customs shall verify that the narcotic drugs and psychotropic substances exit the territory of the Kingdom through the designated point of exit within the specified period. If the narcotic drugs and psychotropic substances do not exit the territory of the Kingdom, the narcotics control department shall be immediately notified to take the measures necessary as per its jurisdiction; customs shall be notified of any measures taken in this regard.

Article 15

The CEO of the Saudi Food and Drug Authority shall, in agreement with the Minister of Health, approve the procedures and controls for receiving the inventory of narcotic drugs and psychotropic substances at pharmaceutical warehouses and factories and treatment facilities.

Article 16

1. The inventory record of narcotic drugs and psychotropic substances at pharmaceutical establishments, treatment facilities, and research institutions licensed to use such drugs and substances must include the following information:
 - a) Inventory record number and date.
 - b) Scientific name, pharmaceutical form, concentration, volume, and packaging of the narcotic drug or psychotropic substance.
 - c) Remaining quantity from the previous inventory record.
 - d) Incoming quantity.
 - e) Supplier.
 - f) Total quantity.
 - g) Dispensed quantity.
 - h) Information of persons to whom quantities are dispensed.
 - i) Remaining quantity.
 - j) Name and signature of the person entrusted with the inventory of narcotic drugs and psychotropic substances.



- k) Name and signature of the manager of the establishment, or his designee.
 - l) Official seal of the establishment.
2. The inventory record shall be submitted to the Ministry of Health or the Saudi Food and Drug Authority, as the case may be, every six months, and a copy of such record shall be kept at the establishment.
 3. The CEO of the Saudi Food and Drug Authority shall, in agreement with the Minister of Health, approve procedures and controls for controlling dispensing.

Article 17

The CEO of the Saudi Food and Drug Authority shall, in coordination with the Minister of Health, approve the procedures and controls for selling, dispensing, and disposing of narcotic drugs and psychotropic substances at pharmaceutical establishments and treatment facilities.

Article 18

1. License applications for establishing or constructing factories or laboratories that specialize in the production or separation of narcotic drugs and psychotropic substances for scientific or commercial purposes shall be submitted to the Saudi Food and Drug Authority.
2. A standing committee shall be formed at the Saudi Food and Drug Authority comprising representatives from the Ministry of Interior, Ministry of Commerce and Industry, and Ministry of Health. Said committee shall assume the following tasks:
 - a) Set conditions and procedures for licensing and monitoring the factories and laboratories referred to in paragraph (1) of this Article.
 - b) Review the license applications referred to in paragraph (1) of this Article to determine their eligibility for approval.
3. The Saudi Food and Drug Authority shall submit the license applications approved by the standing committee to the Council of Ministers for consideration.

Article 19

1. Storing narcotic drugs and psychotropic substances at licensed establishments shall be subject to the following conditions:
 - a) Storage must be in accordance with the specifications and conditions prescribed by the manufacturing company.
 - b) Storage must be in a vault or storage room at the licensed establishment.
 - c) The vault or storage room must only be used for storing narcotic drugs and psychotropic substances.
 - d) The vault or storage room must be securely locked; protected in a manner that prevents it from being removed, broken, or moved; and equipped with a security alarm system.
2. The Saudi Food and Drug Authority shall, in coordination with the Ministry of Health, verify the safety and security of any means of technology used for storing narcotic drugs and psychotropic substances to ensure that it satisfies the abovementioned conditions prior to approving the use thereof.



3. The CEO of the Saudi Food and Drug Authority shall, in coordination with the Minister of Health, approve the procedures and controls for storing and destroying damaged items and empty containers of narcotic drugs and psychotropic substances.
4. In case of the increase, decrease, loss, or damage of narcotic drugs or psychotropic substances, the following measures shall be taken:
 - a) The person in charge of the inventory of narcotic drugs and psychotropic substances shall protect such substances and report the incident to his immediate supervisor without touching or altering the same, and he shall immediately secure the place and all its contents.
 - b) If the loss, decrease, or damage is due to a robbery or if theft or attempted robbery is suspected, the manager of the establishment shall report the incident to the police department and the narcotics control department.
 - c) In case of a loss, decrease, damage, or increase with no signs of assault or robbery or no suspicion of theft, the following measures shall be taken:
 - i. The manager of the establishment shall form an investigation committee consisting of at least three members, one of whom shall be from inventory control at the establishment, to undertake the following:
 - a) Take inventory of the items at the place where the increase, decrease, loss, or damage was detected to identify the increased, decreased, lost, or damaged items and the quantities thereof.
 - b) Investigate the causes of the increase, loss, decrease, or damage to determine whether it was due to negligence or omission or to an unforeseen incident, and to determine the liability of the person found to be negligent or responsible for the omission.
 - ii. The manager of the establishment shall submit the committee's report to the Ministry of Health or the Saudi Food and Drug Authority, as the case may be, to take necessary action. A copy of such report shall be kept in the inventory record.
 - iii. If the competent person, who has law-enforcement capacity, at the Ministry of Health or the Saudi Food and Drug Authority establishes that the increase, loss, decrease, or damage is due to a criminal act, he shall prepare a report on the incident and notify the narcotics control department as well as the Bureau of Investigation and Public Prosecution.

Article 20

1. Medical prescriptions shall be subject to the following conditions:
 - a) The prescription must be issued for only one pharmaceutical drug.
 - b) The prescription must consist of an original with the phrase "Controlled Substance" printed at the top in red ink as well as two copies with the phrase "Not for Dispensing Purposes" printed thereon.
 - c) The original of the prescription must be kept at the pharmacy, one copy must be given to the patient, and the other copy must be kept in the prescription book.
 - d) The prescription must be written in permanent ink and must be free from any erasure or alteration.



2. A prescription shall include the following information:
 - a) Establishment's name and address.
 - b) Patient's full name, age, sex, and nationality.
 - c) Patient's file number and ID number.
 - d) Prescription number and date.
 - e) Diagnosis.
 - f) Scientific name and pharmaceutical form of the pharmaceutical drug as well as the prescribed dose and treatment duration (in numbers and words).
 - g) Physician's name, work ID number, and signature.
 - h) Name of the pharmacist in charge and his work ID number and signature.
 - i) Prescription instructions as specified by the Ministry of Health in coordination with the Saudi Food and Drug Authority.
 - j) Seal of the establishment.
3. A prescription shall be valid from its issuance date for:
 - a) one day only in emergency cases; and
 - b) seven days for outpatients and discharged patients.
4. The Minister of Health may, in coordination with the CEO of the Saudi Food and Drug Authority, amend the conditions, information, and validity periods provided for in the previous paragraphs of this Article.
5. The Ministry of Health shall, in coordination with the Saudi Food and Drug Authority, verify that any means of technology used for writing prescriptions satisfies the abovementioned conditions prior to approving the use thereof.

Article 21

1. The original of the prescription shall be kept for three years.
2. Each pharmacy must maintain a five-year record for prescriptions.
3. Prescriptions and prescription records shall be destroyed after the lapse of the specified period by a committee comprising three members formed pursuant to a decision by the manager of the establishment, or his designee; a report shall be prepared to this effect.



Article 22

1. Pharmaceutical establishments must keep a record for each pharmaceutical drug containing narcotic drugs or psychotropic substances.
2. The pages of the record must be sequentially numbered.
3. Records in pharmacies and warehouses must include the following information:
 - a) Pharmaceutical drug's scientific name, pharmaceutical form, concentration, and volume.
 - b) Previous stock.
 - c) Incoming quantity, batch number, and expiration date.
 - d) Supplier and date of receipt.
 - e) Total quantity.
 - f) Dispensed quantity, batch number, dispensing date, and dispenser's name and signature.
 - g) Name and address of beneficiary entity (for warehouses only).
 - h) Patient's name, age, ID number, and medical file number as well as the prescription number and the prescriber's name (for pharmacies only).
 - i) Remaining quantity.
4. Records must be written in permanent ink, and any changes thereon must be initialed.
5. At the end of each year, the names and signatures of the person in charge of the inventory of narcotic drugs and psychotropic substances as well as the manager of the establishment, or his designee, must be written on the record, and the record must be stamped with the official seal of the establishment.
6. Records shall be kept for 10 years.
7. Records shall be destroyed after the lapse of the specified period by a committee comprising three members formed pursuant to a decision by the manager of the establishment, or his designee; a report shall be prepared to this effect.
8. The Saudi Food and Drug Authority shall, in coordination with the Ministry of Health, verify that any means of technology used for recording the items received by a pharmacy or warehouse satisfies the abovementioned conditions.

Article 23

1. The Minister of Health shall, in coordination with the CEO of the Saudi Food and Drug Authority, approve the procedures and controls for prescribing and dispensing narcotic drugs and psychotropic substances in treatment facilities.
2. The Minister of Health shall approve the procedures and controls for verifying the compliance of treatment facilities with the provisions of this Article, and shall review proof thereof.



Article 24

1. Physicians shall be licensed to possess, prescribe, and dispense narcotic drugs and psychotropic substances at their private clinics, subject to the following controls:
 - a) The clinic's license issued by the Ministry of Health must be valid.
 - b) The clinic's annual requirement must be approved by the Saudi Food and Drug Authority.
 - c) The inventory of narcotic drugs and psychotropic substances must be entrusted to the physician who is the owner of the clinic or to a Saudi pharmacist or Saudi pharmacy technician who works at the clinic.
 - d) Possession shall be limited to the emergency pharmaceuticals determined by the Minister of Health.
 - e) Prescribing and dispensing pharmaceuticals at private clinics shall be subject to the controls provided for in Articles 20, 21, 22, and 23 of these Regulations.
2. Possessing emergency pharmaceuticals containing narcotic drugs and psychotropic substances and administering them in emergency situations shall be subject to the following controls:
 - a) The director of the emergency center shall be in charge of emergency pharmaceuticals containing narcotic drugs or psychotropic substances if the center does not have a Saudi pharmacist or Saudi pharmacy technician.
 - b) The head of the paramedic team shall be in charge of emergency pharmaceuticals containing narcotic drugs or psychotropic substances in the ambulance.
 - c) The Minister of Health shall approve the emergency pharmaceuticals containing narcotic drugs or psychotropic substances that may be used in emergency situations as well the quantities and pharmaceutical forms thereof.
 - d) Emergency pharmaceuticals containing narcotic drugs or psychotropic substances shall be administered in emergency situations in accordance with the following controls:
 - i. Emergency pharmaceuticals shall be administered to patients by paramedics after a physician approves such administration and determines the pharmaceutical drug and the dose.
 - ii. Empty medicine containers shall be returned to the dispensing entity, and the following information shall be recorded in the inventory record: the patient's name, the physician's name and the date and time he was contacted, the name and quantity of the dispensed pharmaceutical drug, the time the pharmaceutical drug was dispensed, and the dispenser's name and signature.
 - iii. If the quantity prescribed for the patient is less than the dose administered by a single injection, the paramedic who administered the pharmaceutical drug and the head of the paramedic team supervising such administration shall destroy the remaining quantity; such destruction shall be recorded in the patient's report and they shall both sign thereon.

Article 25

Family members shall include parents, children, siblings, and spouses.



Article 26

The Minister of Health shall issue controls and instructions relating to the return and disposition of pharmaceuticals containing narcotic drugs or psychotropic substances, including narcotic drugs and psychotropic substances dispensed from government or private treatment facilities.

Article 27

1. The provisions of the Law of the Import and Management of Chemical Substances and its Implementing Regulations shall apply to the chemical precursors listed in Table No. 3 attached to the Law of Combating Narcotic Drugs and Psychotropic Substances with regard to the conditions and procedures for the import, export, manufacture, trade, use, assignment, or possession of such precursors as well as the control thereof and the relevant competent agencies.
2. The competent agencies referred to in the previous paragraph of this Article shall provide the Ministry of Interior (General Directorate of Narcotics Control) with the following:
 - a) Estimates of the legitimate annual requirements (according to the Gregorian calendar) of the chemical precursors determined by the Ministry of Interior (General Directorate of Narcotics Control).
 - b) A copy of the import and clearance licenses.
 - c) The purpose for importing the chemical precursors, and the approximate quantity required for such purpose.
 - d) Data and reports, submitted every three months (according to the Gregorian calendar), on the following:
 - i. Used quantities and the remaining quantities thereof.
 - ii. Produced quantities and the used quantities thereof.
 - iii. Damaged quantities.
 - iv. The names and quantities of produced substances as well as the names and addresses of the entities benefiting from such substances and the quantity allocated to each entity and its purpose of use.
 - v. Quantities must be measured by weight (kilogram/gram) or by volume (liter/milliliter).
 - e) A report at the end of each Gregorian year indicating the following:
 - i. Total weight or volume of the quantities imported (cleared) and the countries from which such quantities were imported.
 - ii. Total weight or volume of the quantities exported and the countries to which such quantities were exported.
 - iii. The weight provided must be the net weight, excluding the weight of the package or container.
 - f) Copies of the reports on violations of the Law of the Import and Management of Chemical Substances and its Implementing Regulations.
3. In addition to the competent agencies provided for in the Law of the Import and Management of Chemical Substances, the Ministry of Interior (General Directorate of Narcotics Control) shall coordinate with the Saudi Food and Drug Authority to control chemical precursors and verify the accuracy of the data referred to in Article 27(2) of these Regulations.



4. A Saudi pharmacist, Saudi chemist, Saudi pharmacy technician, or Saudi chemical technician shall be in charge of the inventory of the chemical precursors listed in Table No. 3 attached to the Law of Combating Narcotic Drugs and Psychotropic Substances.

Article 28

1. Judgments rendered prior to the issuance of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be the basis for indictment and prosecution for the crimes provided for in Article 37(First)(5 and 6) of the Law of Combating Narcotic Drugs and Psychotropic Substances.
2. The judgment must include a description of the crime and specify the narcotic drug or psychotropic substance involved.

Article 29

1. The service facilities annexed to a mosque shall be deemed part of the mosque.
2. The sanctity and sacredness of the Two Holy Mosques shall be taken into account when considering imposition of a harsher penalty.
3. Places designated for education or training and the activities related thereto as well as their facilities and adjacent areas shall be taken into account when considering imposition of a harsher penalty.
4. Correctional institutions shall include the following:
 - a) Detention centers.
 - b) Correctional facilities and prisons.
 - c) Juvenile homes and girls' welfare foundations.

Article 30

If a judge decides to impose a discretionary penalty of imprisonment on a person who uses narcotic drugs or psychotropic substances, the penalty shall not exceed the maximum limit provided for in Article 41(1) of the Law of Combating Narcotic Drugs and Psychotropic Substances.

Article 31

1. Any narcotic drugs or psychotropic substances in the possession of a user or an addict shall be surrendered to the entity handling the case. Seized substances shall be recorded in an official report and delivered to the narcotics control department.
2. If the user or addict does not surrender the narcotic drugs or psychotropic substances in his possession but discloses their location, the police shall seize such substances in locations with no narcotics control department.
3. Cases of using narcotic drugs or psychotropic substances provided for in Article 42(2) of the Law of Combating Narcotic Drugs and Psychotropic Substances shall include the criminal acts punishable pursuant to Article 41 of said Law if such acts are committed with the intent of use or personal use.



4. In cases of first-time use of narcotic drugs or psychotropic substances or first-time possession thereof with the intent of use or personal use, the investigation shall be closed in accordance with the provisions of the Law of Criminal Procedure.
5. The entity ordering closure of the investigation shall notify the narcotics control department in the province to record in a special register cases in which investigations are closed in accordance with Article 42(2) of the Law of Combating Narcotic Drugs and Psychotropic Substances.

Article 32

1. Any person whose addiction is established by virtue of a medical report issued by an addiction rehabilitation facility shall be deemed an addict.
2. An addict may be committed to an addiction rehabilitation facility in the following cases:
 - a) The addict is convicted of the crime of using narcotic drugs or psychotropic substances, provided that said crime is not committed together with any other crime.
 - b) The addict possesses, acquires, purchases, or receives narcotic drugs or psychotropic substances only for the purpose of use, provided that the quantity of such substances does not exceed his need or personal use.
 - c) The addict is apprehended by the competent agencies pursuant to a report or complaint.
3. The addiction rehabilitation facility shall, pursuant to a medical report, determine the duration an addict is to be committed based on the treatment required for his condition, provided that said duration is not less than 15 days.
4. The Committee for Reviewing Addiction Cases shall submit a report on the addict to the Bureau of Investigation and Public Prosecution; said report shall include information on his social background and health condition as well as the duration of treatment needed.
5. The Bureau of Investigation and Public Prosecution shall file a lawsuit with the competent court and shall enclose therewith the report of the Committee for Reviewing Addiction Cases.
6. Upon conviction, the addict shall be committed to an addiction rehabilitation facility pursuant to a court order.
7. The duration of treatment shall be not less than six months and not more than two years. The court may, for compelling reasons, order that the duration be less than the minimum limit.
8. The following cases shall not be committed to an addiction rehabilitation facility:
 - a) An addict who has been committed to an addiction rehabilitation facility pursuant to a court order twice.
 - b) An addict who, while undergoing treatment at an addiction rehabilitation facility, commits any of the crimes provided for in the Law of Combating Narcotic Drugs and Psychotropic Substances.
 - c) An addict shall be excluded from paragraph (a) of this paragraph if three years have lapsed from the issuance of the last court order committing him to an addiction rehabilitation facility.



9. The conditions for releasing an addict shall be as follows:
 - a) The addiction rehabilitation facility shall release the addict after his condition stabilizes as determined by a medical report. The Committee for Reviewing Addiction Cases shall be notified thereof in writing.
 - b) If the condition of the addict requires extending the duration of treatment, the addiction rehabilitation facility shall submit a report to this effect to the Committee for Reviewing Addiction Cases before the end of the treatment duration.
 - c) The order to extend the duration of treatment, whether for a period or more, shall be issued by the judge who issued the original court order.
10. The treatment order shall be revoked by the court upon a request by the Bureau of Investigation and Public Prosecution based on a report from the Committee in the following cases:
 - a) The treatment is futile.
 - b) The addict fails to follow the instructions of his treatment at the addiction rehabilitation facility.
 - c) The addict violates the rules and instructions of the addiction rehabilitation facility.
 - d) The addict commits any of the crimes provided for in the Law of Combating Narcotic Drugs and Psychotropic Substances while undergoing treatment at the addiction rehabilitation facility.

Article 33

1. The Committee for Reviewing Addiction Cases shall have the following duties and powers:
 - a) Forming subcommittees and determining their duties, powers, and work rules and procedures.
 - b) Reviewing the subcommittees' reports on addiction cases and submitting recommendations thereon to the National Committee for Narcotics Control.
 - c) Overseeing and evaluating the performance of the subcommittees.
 - d) Designating the entities authorized to receive addiction treatment requests, whether submitted by the addict himself or by an ascendant, descendant, spouse, or relative thereof, and setting the necessary controls for such requests.
 - e) Setting the necessary controls to maintain the confidentiality of information in accordance with Article 51 of the Law of Combating Narcotic Drugs and Psychotropic Substances.
2. The Committee shall comprise representatives from the following entities as members:
 - a) Ministry of Interior.
 - b) Ministry of Health.
 - c) Ministry of Social Affairs.
 - d) Bureau of Investigation and Public Prosecution.
 - e) National Committee for Narcotics Control.



3. The Committee's work rules and procedures shall be as follows:

- a) The Committee shall have a secretariat entrusted with coordinating its tasks.
- b) The Committee shall convene at the headquarters of the National Committee for Narcotics Control.
- c) The Committee shall have a chairman who shall be appointed by the Minister of Interior, in agreement with the Minister of Health, for a term of three years, renewable only once. Chairmanship of the Committee shall alternate between the Ministry of Interior and the Ministry of Health.
- d) The Committee shall convene periodically every three months, and as needed at the request of the chairman.
- e) The Committee's decisions shall be passed by majority vote.
- f) The Committee may, for the purpose of fulfilling its duties, seek the assistance of specialists as it deems fit.
- g) The General Secretariat of the National Committee for Narcotics Control shall provide financial and technical support to the Committee and its subcommittees.
- h) The Committee may add any procedure it deems necessary to facilitate its work.

Article 34

1. The types and quantities of narcotic drugs and psychotropic substances referred to in Article 47 of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be as follows:

	Substance	Maximum Quantity Permitted
1	Papaver Somniferum (Opium)	100 mg
2	Cannabis and Cannabis resin	100 mg
3	Catha edulis (KHAT)	1000 mg
4	Fentanyl	10 mg
5	Hydrocodone	225 g
6	Hydromorphone	150 g
7	Methadone	1 g
8	Morphine	1.5 g
9	Oxycodone	0.5 g
10	Pethidine	6 g
11	Codeine	6 g
12	Dextropropoxyphene	3 g
13	Dihydrocodeine	6 g
14	Dronabinol	0.5 g
15	Methylphenidate	1 g
16	Buprenorphine	150 mg



17	Butalbital	0.5 g
18	Flunitrazepam	15 mg
19	Pentazocine	3 g
20	Pentobarbital	1.5 g
21	Barbital	7.5 g
22	Chlordiazepoxide	0.5 g
23	Clorazepate	300 mg
24	Diazepam	150 mg
25	Lorazepam	37.5 mg
26	Medazepam	300 mg
27	Meprobamate	20 g
28	Oxazepam	0.75 g
29	Phenobarbital	1.5 g
30	Prazepam	0.5 g
31	Temazepam	300 mg
32	Tetrazepam	1.5 g
33	Amphetamines	10 pills

2. The Minister of Interior may, in coordination with the Minister of Health, amend the types and quantities of narcotic drugs and psychotropic substances listed in the table provided for in paragraph (1) above.

Article 35

The Ministry of Health shall, in coordination with the Committee for Reviewing Addiction Cases, designate the psychiatric clinics referred to in Article 50 of the Law of Combating Narcotic Drugs and Psychotropic Substances.

Article 36

1. The substances referred to in Article 52(1) of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be confiscated upon seizure; an official report shall be prepared to this effect.
2. The Minister of Interior may direct that seized illegal narcotic drugs and psychotropic substances remain in the custody of the seizing authority until such substances are destroyed or surrendered to the narcotics control department.



3. a) A committee or more, as determined by the Minister of Interior, shall be formed to destroy confiscated narcotic drugs and psychotropic substances; such committee shall comprise representatives from each of the following entities:
 - i. The governorate of the province.
 - ii. The narcotics control department.
 - iii. The court.
 - iv. The Bureau of Investigation and Public Prosecution.
 - v. The agency in charge of customs.
 - vi. The seizing authority.
- b) The controls and procedures for destroying confiscated narcotic drugs and psychotropic substances shall be determined pursuant to a decision by the Minister of Interior.
- c) The Council of Ministers shall determine the remuneration of members of the committee entrusted with destroying narcotic drugs and psychotropic substances.
4. Confiscated narcotic drugs and psychotropic substances may, wholly or partly, be delivered to any government agency to benefit therefrom for scientific, industrial, or medical purposes, in accordance with controls to be issued pursuant to a decision by the Minister of Interior.

Article 37

The competent agencies shall take the measures necessary to implement the provisions of Articles 55, 56, and 57 of the Law of Combating Narcotic Drugs and Psychotropic Substances.

Article 38

The exemption provided for in Article 61 of the Law of Combating Narcotic Drugs and Psychotropic Substances shall be granted pursuant to a reasoned decision issued by the President of the Bureau of Investigation and Public Prosecution.

Article 39

The directors and officers of the General Directorate of Narcotics Control as well as noncommissioned officers in military sectors shall have law-enforcement capacity with regards to the crimes provided for in the Law of Combating Narcotic Drugs and Psychotropic Substances in such sectors and their facilities, provided that such directors, officers, and noncommissioned officers coordinate with the criminal investigation officers at the competent agencies with regards to narcotics cases.

Article 40

These Regulations shall be published in the Official Gazette, and shall enter into force 30 days following the date of publication.



Appendix

Amendments

June 23, 2020 (Thul-Qi'dah 2, 1441H)

Council of Ministers Resolution No. 693 provides for the following:

- Amending the beginning of paragraph (2) of Article 18 to read as follows:

"A standing committee shall be formed at the Saudi Food and Drug Authority comprising representatives from the Ministry of Interior, Ministry of Industry and Mineral Resources, and Ministry of Health. Said committee shall assume the following tasks:....".